

CV-26-004163 BENCH, ONEIDA vs CENTRAL VALLEY POST ACUTE – Defendant's Petition to Compel Arbitration - GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The Court finds that Defendants have discharged their burden of demonstrating the existence of a valid arbitration agreement between the decedent Sandra Conforti and the Defendants. *Sandquist v. Lebo Automotive, Inc.* (2016) 1 Cal. 5th 233, 244; *Martinez v. BaronHR, Inc.* (2020) 51 Cal.App. 5th 962, 967; *Gamboa v. NorthEast Community Clinic* (2021) 72 Cal.App. 5th 15; Civ. Proc. Code § 1281.2; Cal. Rules of Court, rule 3.1330; *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal. 4th 394, 413. The Court further finds that said agreement is governed by the Federal Arbitration Act and its procedural rules. 9 U.S.C §§ 2-4; *Aviation Data, Inc. v. American Express Travel Related Servs. Co.* (2007) 152 Cal.App. 4th 1522; *Volt Info. Sciences v. Leland Stanford Jr. Univ.* (1989) 489 U.S. 468; *Tuufuli v. W. Coast Dental Admin. Servs. LLC* (2026) 117 Cal.App. 5th 1048. The Court further finds that the delegation clause in the parties' arbitration agreement, which delegates to the arbitrator the authority to resolve a wide range of disputes -including those relating to the scope of the arbitration agreement and the arbitrability of the present dispute

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The Court further finds that the delegation clause in the parties' arbitration agreement, which delegates to the arbitrator the authority to resolve a wide range of disputes -including those relating to the scope of the arbitration agreement and the arbitrability of the present dispute - clearly and unmistakably delegates the stated authority to the arbitrator. *Nickson v. Shemran, Inc.* (2023) 90 Cal.App. 5th 121; *Jack v. Ring LLC* (2023) 91 Cal.App. 5th 1186, review denied; *Henry Schein, Inc. v. Archer & White Sales, Inc.* (2019) 586 U.S. 63, 67-69; *Rent-A-Center, West, Inc. v. Jackson* (2019) 561 U.S. 63, 70; and *First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 944-45.

However, to the extent that the parties presented to the court issues exceeding the determination of the validity of the arbitration agreement, the court proceeds to address those issues.

The Court finds that the causes of action for General Negligence, Survival Claim and Elder Abuse and Neglect are survivor actions: decedent's own claims she could have brought had she not died, which are premised on professional negligence and are therefore, pursuant to Article I of the parties' arbitration agreement, subject to binding arbitration. *San Diego Gas & Electric Co. v. Superior Court* (2007) 146 Cal.App. 4th 1545, modified on denial of rehearing, review denied; Civ. Proc. Code §§ 377.30,1295; *Flores v. Presbyterian Intercommunity Hosp.* (2016) 63 Cal. 4th 75.

As to Plaintiffs' wrongful death cause of action, the Court finds that this cause of action belongs to the heirs of the decedent. *San Diego Gas & Electric Co. v. Superior Court* (supra); *Adams v. Superior Ct.* (2011) 196 Cal.App. 4th 71; and *Monschke v. Timber Ridge Assisted Living, LLC* (2016) 244 Cal.App. 4th 583.

As a general rule, a party cannot be compelled to arbitrate a dispute that he or she has not agreed to resolve by arbitration. *Daniels v. Sunrise Senior Living, Inc.* (2013) 212 Cal.App. 4th 674; and *Dean Witter Reynolds Inc. v. Byrd* (1985) 470 U.S. 213, 219–220. However, a patient's arbitration agreement may bind their heirs in a wrongful death action where: (1) the arbitration agreement expressly manifests an intent to bind heirs or wrongful death claimants; and (2) the wrongful death claim itself is premised on professional negligence within the scope of § 1295, not merely on custodial or non-medical care. *Ruiz v. Podolsky* (2010) 50 Cal. 4th 838; and *Holland v. Silverscreen Healthcare, Inc.* (2025) 18 Cal. 5th 364. The Court finds that these requirements are met here.

Accordingly, Defendants Petition to Compel Arbitration of the claims herein is GRANTED, and this action shall be STAYED pending completion of the arbitration required by the agreement. 9 U.S.C. §3; Civ. Proc. Code §§'s 1281.2,1281.4.

Defendant shall submit a Proposed Order within five court days that complies with this ruling.

The following are the tentative rulings for cases calendared before Commissioner Jared D. Beeson in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA:

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